

Pokhara Academy of Health Sciences Act, 2016

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Pokhara Academy of Health Sciences Act, 2072

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Amending Acts

1. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 12 of the year 2072

An Act Made to Provide for Matters Relating to Pokhara Academy of Health Sciences

Preamble: Whereas, it is desirable to make necessary provisions for the establishment and operation of the Western Regional Hospital, Pokhara as an Academy of Health Sciences, in order to provide for high-level studies and research in the field of health sciences, produce skilled manpower needed by the country, and make quality health services easily accessible to the general public in health services,

The Legislature-Parliament, pursuant to Sub-section (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Pokhara Academy of Health Sciences Act, 2072".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Hospital" means the hospital established pursuant to Section 16.

(b) "Hospital Management Committee" means the Hospital Management Committee constituted pursuant to Section 17.

(c) "Vice-Chancellor" means the Vice-Chancellor under Section 20.

(d) "Executive Council" means the Executive Council constituted pursuant to Section 11.

(e) "Chancellor" means the Chancellor under Section 18.

(f) "Dean" means the Dean under Section 21.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(h) "Director" means the Director under Section 22.

(i) "Backward Region" means the region prescribed pursuant to the prevailing law.

(j) "Academy" means the Pokhara Academy of Health Sciences established pursuant to Section 3.

(k) "Academic Council" means the Academic Council constituted pursuant to Section 9.

(l) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. (l) "Ministry" means the Ministry of Health and Population.

(m) "Teacher" means a person appointed to teach and conduct research at the Academy.

(n) "Educational Institution" means the educational institution established pursuant to Section 15.

(o) "Assembly" means the Assembly constituted pursuant to Section 7.

(p) "Pro-Chancellor" means the Pro-Chancellor under Section 19.

(q) "Service Commission" means the Service Commission constituted pursuant to Section 13. Chapter-2 Establishment, Form, and Functions, Duties and Powers of the Academy

3.

Establishment of Academy: (1) The Pokhara Academy of Health Sciences is established for the purpose of conducting high-level study, teaching and research in the field of health sciences, and making quality health services easily accessible to the general public in health services. (2) The principal office of the Academy shall be located in Kaski District. (3) The Academy shall be called "Pokhara Academy of Health Sciences" in the English language. 4. Academy to be an Autonomous Body: (1) The Academy shall be an autonomous body with perpetual succession. (2) The Academy shall have its own separate seal for its business. (3) The Academy may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property. (4) The Academy may, like a person, sue and be sued in its own name. (5) The Academy may, like a person, enter into contracts, exercise rights under contracts, and discharge liabilities. 5. Form of the Academy: The Academy shall have the following organizations, and their collective form shall be the form of the Academy: - (a) Assembly, (b) Academic Council, (c) Executive Council, (d) Faculties, (e) Research Centres, (f) Educational Institutions, (g) Hospital, (h) Other bodies as prescribed. 6. Functions, Duties and Powers of the Academy: (1) The functions, duties and powers of the Academy shall be as follows: - (a) To conduct and cause to be conducted study, teaching, training and research on various subjects related to health, (b) To provide quality and accessible health services, (c) To make agreements with domestic and foreign universities, educational institutions and hospitals for conducting study, teaching, training and research programs on various subjects related to health, (d) To produce skilled manpower required for quality health services, (e) To coordinate with domestic or foreign universities, educational institutions or hospitals to strengthen various programs operated by the Academy and enhance the quality of such programs, (f) To establish, expand and strengthen relations with domestic and foreign universities, academies and international organizations related to health, and exchange mutual cooperation and experience, (g) To organize and cause to be organized workshops, conferences, seminars, interactions and health camps on various subjects related to health, (h) To publish and cause to be published various books, pamphlets, bulletins and awareness posters related to health, (i) To perform and cause to be performed other functions as prescribed. (2) The functions, duties and powers of the Academy shall be exercised and performed through the organizations of the Academy. Chapter-3 Formation and Functions, Duties and Powers of the Assembly 7.

Formation of Assembly: (1) There shall be an Assembly as the supreme body of the Academy. (2) The formation of the Assembly shall be as follows: - (a) Chancellor -Chairperson (b) Pro-Chancellor -Vice-Chairperson (c) Member, National Planning Commission (looking after health sector) -Member (d)

Vice-Chancellor -Member (e) Two persons nominated by the Assembly, on the recommendation of the Executive Council, from among the Vice-Chancellors of universities offering higher education in health sciences and other health science academies -Member (f) Secretary, Ministry -Member (g) Secretary, Ministry of Finance -Member (h) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Secretary, Ministry of Education, Science and Technology -Member (i) One person nominated by the Assembly from among the Deans -Member (j) One student studying at the Academy, on the recommendation of the Executive Council -Member (k) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075. Chief, Pokhara Metropolitan City -Member (l) Two teachers, including at least one woman, nominated by the Executive Council, on the recommendation of the Academic Council, from among the teachers -Member (m) One person nominated by the Assembly, on the recommendation of the Executive Council, from among the heads of educational institutions -Member (n) Four persons, including at least two women, nominated by the Assembly, on the recommendation of the Executive Council, representing Dalit, Indigenous/Janajati and backward classes -Member (o) Two persons, including at least one woman, nominated by the Assembly, on the recommendation of the Executive Council, from among donors -Member (p) One person nominated by the Assembly from among the employees working at the Academy -Member (q) Dean -Member-Secretary (3) The term of office of nominated members under Sub-section (2) shall be three years. (4) If the office of a nominated member falls vacant for any reason, another person shall be nominated to that office for the remaining period according to the same procedure by which it was previously filled. (5) The procedure relating to meetings of the Assembly shall be as prescribed. 8.

Functions, Duties and Powers of the Assembly: The functions, duties and powers of the Assembly shall be as follows: - (a) To approve policies, plans and programs of the Academy, (b) To approve the annual budget of the Academy, (c) To approve rules of the Academy, (d) To award scholarships, degrees, certificates, medals and prizes on behalf of the Academy, (e) To award honorary degrees as prescribed, (f) To guide and provide necessary directions to various bodies under the Academy, (g) To provide necessary suggestions to the Government of Nepal in the course of formulating national health and education policies, (h) To approve the annual report of the Academy, (i) To discuss and approve the audit report of the Academy, (j) To make or cause to be made necessary arrangements regarding the establishment of educational institutions, (k) To perform and cause to be performed other functions as prescribed. Chapter-4 Formation and Functions, Duties and Powers of the Academic Council 9. Formation of Academic Council: (1) There shall be an Academic Council as the body to systematize and regularize the educational, academic and research activities of the Academy. (2) The formation of the Academic Council shall be as follows: - (a) Vice-Chancellor -Chairperson (b) Five persons nominated by the Assembly, on the recommendation of the Executive Council, from among the chairpersons of various subject committees of the Academy -Member (c) Dean -Member (d) Heads of bodies relating to curriculum and examination of the Academy -Member (e) Two teachers, including at least one woman, nominated by the Assembly, on the recommendation of the Executive Council, from among the teachers -Member (f) Two persons, including at least one woman, nominated by the Assembly, on the recommendation of the Executive Council, from among persons who have made outstanding contributions to the health sector -Member (g) Director -Member-Secretary (3) The term of office of nominated members under Sub-section (2) shall be three years. (4) If the office of a nominated member falls vacant for any reason, another person shall be nominated to that office for the remaining period according to the same procedure by which it was previously filled. (5) The procedure relating to meetings of the Academic Council shall be as prescribed. 10.

Functions, Duties and Powers of Academic Council: The functions, duties and powers of the Academic

Council shall be as follows: - (a) To formulate necessary policies, plans and programs to systematize and regularize the educational, academic and research activities of the Academy and submit them to the Assembly for approval, (b) To conduct and cause to be conducted study and research programs to provide education at various subjects and levels related to health sciences, (c) To determine the qualifications of teachers required for the Academy, (d) To determine the standard of study, research, training and coaching programs operated by the Academy and approve the curriculum, (e) To select students, (f) To determine examination standards, (g) To conduct examinations and publish results, (h) To recommend to the Assembly to award degrees to students who succeed in study programs operated by the Academy, (i) To recommend to the Assembly to award honorary degrees, scholarships, medals and prizes on behalf of the Academy, (j) To prepare quality textbooks, (k) To evaluate study, research, training and coaching programs operated by the Academy, (l) To determine fees for study, training and research, (m) To implement and monitor decisions related to the Academic Council approved by the Assembly, (n) To perform other functions as prescribed.

Chapter-5 Formation and Functions, Duties and Powers of the Executive Council

11. Formation of Executive Council: (1) There shall be an Executive Council to function as the executive body of the Academy. (2) The formation of the Executive Council shall be as follows: - (a) Vice-Chancellor -Chairperson (b) Dean -Member (c) One person from among the heads of educational institutions who are members -Member (d) Two teachers, including at least one woman, from among the teachers -Member (e) Director -Member-Secretary (3) The nomination of members under clauses (c) and (d) of Sub-section (2) shall be made by the Pro-Chancellor on the recommendation of the Vice-Chancellor. (4) The term of office of members nominated under Sub-section (3) shall be three years. (5) The procedure relating to meetings of the Executive Council shall be as prescribed.

12.

Functions, Duties and Powers of the Executive Council: The functions, duties and powers of the Executive Council shall be as follows: - (a) To implement and cause to be implemented the decisions and directions of the Assembly, (b) To prepare draft rules required for the Academy and submit them to the Assembly for approval, (c) To prepare policies, plans, annual programs, progress reports, annual budget, audit reports and other proposals of the Academy and submit them to the Assembly for approval, (d) To monitor and evaluate the activities performed by subordinate bodies and give directions to such bodies as necessary, (e) Subject to the policy directions of the Assembly, to operate, supervise and protect the fund and movable and immovable property of the Academy, sell or lease them out: Provided that, while selling immovable property received from the Government of Nepal, approval of the Government of Nepal shall be obtained. (f) To appoint and promote teachers and employees required for the Academy on the recommendation of the Service Commission, (g) To accept various types of donations received by the Academy, (h) To perform and cause to be performed other functions as prescribed.

Chapter-6 Formation and Functions, Duties and Powers of the Service Commission

13. Formation of Service Commission: (1) There shall be a Service Commission to recommend for the appointment and promotion of teachers and employees of the Academy. (2) The Service Commission shall consist of the following members: - (a) Person designated by the Assembly -Chairperson (b) Secretary of the Public Service Commission or a representative designated by him/her -Member (c) One person appointed by the Executive Council from among the teachers -Member-Secretary (3) The term of office of the Chairperson and Member-Secretary under clauses (a) and (c) of Sub-section (2) shall be four years. (4) The functions, duties and powers of the Service Commission shall be as prescribed. (5) The procedure relating to meetings of the Service Commission shall be as prescribed.

Chapter-7 Faculties, Educational Institutions, Hospital and Other Bodies

14. Provision relating to Faculties and Research Centres: (1) The Academy may establish Faculties and Research Centres. (2) The formation and functions, duties and powers of Faculties and Research Centres established under Sub-section (1) shall be as prescribed.

15.

Establishment and Operation of Educational Institution: (1) The Academy may establish educational institutions as necessary for the purpose of conducting study and research on various subjects related to health sciences. (2) The operation of educational institutions established under Sub-section (1) shall be as prescribed. 16.

Establishment and Operation of Hospital: (1) The Academy shall establish a hospital for conducting high-level study and research in the health sector and providing quality and accessible health services. (2) The Western Regional Hospital established and operated pursuant to the prevailing law at the time of commencement of this Act shall be deemed to have been established under Sub-section (1). (3) The operation and management of the hospital shall be as prescribed. 17. Hospital Management Committee: (1) There shall be a Hospital Management Committee for the smooth operation and cause of operation of the hospital. (2) The formation and functions, duties and powers of the Hospital Management Committee shall be as prescribed. Chapter-8 Office Bearers, Teachers and Employees of the Academy 18. Chancellor: (1) The Prime Minister shall be the Chancellor of the Academy. (2) The Chancellor shall be the head of the Academy. (3) The Chancellor may inspect the Academy. 19. Pro-Chancellor: (1) The Minister or Minister of State for Health shall be the Pro-Chancellor of the Academy. (2) The Pro-Chancellor may inspect the Academy as necessary and give directions to the Academy. 20. Vice-Chancellor: (1) The Vice-Chancellor shall be the chief office bearer working full-time at the Academy. (2) A committee shall be constituted by the Chancellor, chaired by the Pro-Chancellor and comprising two other members of the Assembly, to recommend for appointment to the post of Vice-Chancellor, and the Chancellor shall appoint the Vice-Chancellor on the recommendation of that committee. 21. Dean: (1) The Vice-Chancellor shall appoint the Dean to work as the head of the educational and academic activities and faculty of the Academy. (2) The Dean shall be a full-time office bearer of the Academy. (3) The appointment under Sub-section (1) shall be as prescribed. 22. Director: The Vice-Chancellor shall, on the recommendation of the Dean, appoint the Director to work as the administrative head of the hospital. 23. Provision relating to Term of Office, Service, Conditions and Functions, Duties and Powers of Office Bearers: (1) The term of office of the Vice-Chancellor, Dean and Director shall be four years. (2) There may be other office bearers as prescribed, other than those mentioned in Sub-section (1), in the Academy. (3) The appointment, service, conditions and functions, duties and powers of office bearers under Sub-section (1) or (2) shall be as prescribed. 24.

Power to Remove from Office: (1) If one-fourth of the members present at the time submit a written application to the Chancellor stating that the Vice-Chancellor has not fulfilled his/her official responsibilities or has not acted in accordance with the conduct befitting the office or has not performed his/her duties honestly, the Chancellor shall constitute a three-member investigation committee comprising a member of the Assembly as chairperson, another member, and the Secretary of the Ministry. (2) If the investigation committee under Sub-section (1) recommends that the Vice-Chancellor has not fulfilled his/her official responsibilities, has not worked honestly, or has not performed his/her duties, and if that matter is passed by a meeting of the Assembly, the Chancellor shall remove such Vice-Chancellor from his/her office. (3) After the investigation committee is constituted under Sub-section (1), such office bearer shall be automatically suspended from his/her office until a decision is made by the Assembly under Sub-section (2). (4) The provision relating to removal of other office bearers of the Academy other than the Vice-Chancellor from office shall be as prescribed. (5) Before recommending the removal of an office bearer of the Academy under Sub-section (2), the investigation committee shall give him/her an opportunity to submit a defense against the allegations made against him/her. 25. Teachers and Employees of the Academy: (1) There shall be teachers and employees in the Academy in the required number. (2) The appointment of teachers and employees of the Academy shall be made on the recommendation of the Service Commission as prescribed. (3) The

functions, duties and powers, remuneration, facilities and other terms of service of teachers and employees of the Academy shall be as prescribed. Chapter-9 Fund, Accounts and Audit of the Academy 26. Fund of the Academy: (1) The Academy shall have a separate fund. (2) The fund under Sub-section (1) shall consist of the following amounts: - (a) Amount received from the Government of Nepal, (b) Amount received from educational fees and service fees, (c) Amount received as grants or loans from domestic or foreign individuals, associations, institutions or foreign governments, (d) Amount received from other sources. (3) Before receiving any amount from foreign individuals, associations, institutions or governments under clause (c) of Sub-section (2), the Academy shall obtain the approval of the Government of Nepal. (4) The amount of the fund of the Academy shall be deposited by opening an account in a commercial bank. (5) All expenses of the Academy shall be borne from the fund under Sub-section (1). (6) The operation of the fund and account of the Academy shall be as prescribed. 27.

Accounts and Audit: (1) The accounts of income and expenditure of the Academy shall be kept in accordance with the prevailing law. (2) The audit of the Academy shall be conducted by the Auditor General. Chapter-10 Miscellaneous 28. Not to Grant Affiliation: The Academy shall not grant affiliation to any educational institution. 29. Power to Merge Other Institutions: (1) If any institution related to health sciences established and operated pursuant to the prevailing law wishes to merge with the Academy, the Academy may merge such institution into the Academy. (2) The basis and procedure for merging an institution under Sub-section (1) shall be as prescribed. 30. Duty to Act in Accordance with National Policy on Health and Education: The Academy shall work in accordance with the national policy on health and education approved by the Government of Nepal. 31. Provision relating to Reservation: (1) While admitting students at various levels up to bachelor's degree in each academic session, the Academy shall make provision for reservation of ten percent of seats for economically disadvantaged Nepali students who have passed the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.School Leaving Certificate examination or equivalent from a community school of the backward region and have permanent residence in that region. (2) Priority shall be given to students from women, Dalit, Indigenous/Janajati, Madhesi and backward classes in the seats reserved under Sub-section (1) in the backward region. (3) While making reservation under Sub-section (1), students shall be selected through competition. 32. Priority to be Given While Admitting Students: While admitting students at various levels, the Academy shall give priority to persons who have provided service in health institutions in backward regions for a prescribed period. 33. Scholarship to be Provided: (1) The Academy shall provide full scholarship to needy students in at least twenty-five percent of the total number of students admitted in each academic session.

Explanation: For the purpose of this section, "needy" means students who have studied in a community school and passed the Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.School Leaving Certificate examination or equivalent, and who are recommended as needy by the concerned local level on a prescribed basis. (2) Considering the twenty-five percent under Sub-section (1) as one hundred percent, scholarship shall be provided only to students from women, Dalit, Indigenous/Janajati, Madhesi and backward classes in forty-five percent of that number. (3) The Academy may provide partial scholarship to needy students. (4) The basis for providing scholarship under Sub-sections (1) and (2) shall be as prescribed. (5) Any body or institution may provide scholarship to any student for study at the Academy. 34. Duty to Work at Prescribed Place: (1) A student who has studied under reservation or scholarship under this Act shall work in a backward region for a period prescribed by the Academy. (2) If the body or institution providing scholarship to a student has set a condition requiring the student to work at a certain place for a certain period in return for receiving such scholarship, the student shall work according to that condition, and if no such condition has been set, the student shall work for the period under Sub-section

(1). (3) A student admitted under the priority of the Academy pursuant to Section 32 shall work in a backward region for a period prescribed by the Academy. (4) The Academy shall provide a permanent certificate of academic qualification to a student studying under reservation under Sub-section (1) of Section 31 and under priority or scholarship under Sections 32 and 33 only after such student has worked for the full period mentioned in Sub-section (1), (2) or (3). (5) The Academy may make necessary arrangements to encourage other students studying at the Academy, other than those studying under reservation, priority or scholarship under Sections 31, 32 and 33, to work in health institutions in backward regions after their studies. 35. Annual Report: (1) The Academy shall submit an annual report of its activities performed during the year to the Government of Nepal within three months of the end of each fiscal year. (2) The report under Sub-section (1) shall include, among other things, a brief description of the work done by the Academy during the year and the achievements of the Academy. 36.

Delegation of Powers: (1) The Assembly may delegate some of its powers under this Act to the Academic Council, Executive Council or Vice-Chancellor as necessary. (2) The Academic Council, Executive Council or Service Commission may delegate some of its powers under this Act to any office bearer or subordinate body of the Academy as necessary. 37. Acts not to be Invalidated: Any act done by the Academy shall not be invalidated merely on the ground that the office of any office bearer or member of the Academy is vacant or that there is a defect in the appointment or nomination of any office bearer or member of any organization of the Academy. 38. Provision relating to Monitoring and Directions: The Government of Nepal may monitor the activities of the Academy and give necessary directions, and it shall be the duty of the Academy to comply with such directions. 39. Contact with Government of Nepal: The Academy shall contact the Government of Nepal through the Ministry. 40. Oath to be Taken: A person appointed to the office of an office bearer of the Academy shall take an oath in the prescribed format before assuming the charge of his/her office. 41. Employees may Remain in Academy: (1) Among the employees of the Nepal Health Service working at the Western Regional Hospital, Pokhara at the time of commencement of this Act, those who wish to work at the Academy shall submit an application to the Ministry within six months from the date of commencement of the rules relating to employee service made under this Act. (2) If the Ministry grants approval for an employee who submits an application under Sub-section (1) to remain as an employee of the Academy, such employee shall be deemed to be an employee of the Academy. (3) The service period served in the health service by an employee who remains in the Academy under Sub-section (2) shall be counted towards the service period of the Academy. 42. Power to Make Rules: (1) The Academy may make necessary rules for the implementation of this Act. (2) Notwithstanding anything contained in Sub-section (1), while making rules on matters that impose additional financial burden on the Government of Nepal, approval of the Ministry shall be obtained. 43. Power to Make Standards: To make the activities of the Academy effective and qualitative, the Government of Nepal may make necessary standards relating to health and education, and it shall be the duty of the Academy to comply with such standards. 44.